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FIRST SCHEDULE: Fees.

SECOND SCHEDULE: Penalties.

IT is hereby notified that the Minister responsible for Local Government has, in terms of section 229 of the Urban Councils Act [*Chapter 29:15*], approved the following by-laws:

*Title*

1. These by laws may be cited as the City of Masvingo (Public Health) By-laws, 2025.

*Application*

2. These by-laws shall apply within the City of Masvingo area.

*Interpretation*

3. In these by-laws—

"author of a nuisance" means the person by whose act of commission or omission, default or sufferance the nuisance is caused, exists or is continued, whether he or she is an owner, or occupier or both owner and occupier;

"building" includes any structure for whatever purpose used;

"Council" means City of Masvingo;

"expectorate" means spitting in public;

"nuisance", means any state of affairs which may injure the health, affect the comfort or adversely affect the rights of any person;

"occupier", in relation to any premises, or part thereof, means the person in actual occupation of the premises, or part thereof, who has the right to exercise general control over such premises or part thereof;

"owner" in relation to any premises, means—

(a) the person in whose name the premises are registered in a deed registry; or

(b) a person who is part to an agreement which; on fulfilment of the conditions fixed in that agreement, entitles him to obtain transfer of the premises; or

(c) a statutory authority or body to which the ownership of the premises has been transferred by an enhancement; or

(d) the trustee of an insolvent estate or the liquidator of a company being wound up which is so registered as the owner of the premises; or

(e) the representatives recognised by law or a person so registered as the owner of the premises who has died or is a minor or of sound mind or otherwise under disability; or

(f) where the owner, as defined in paragraph (a), (b), (c), (d) or (e), is absent from the area to which these by-laws apply, or where the whereabouts of such owner are unknown to the Council, the agent of such owner or a person who receives any rent payable in respect of a lease of the premises;

"poultry" means any domestic fowl including turkey, goose, duck, guinea fowl or pigeon;

"premises" means any building or structure, together with any land on which it is situated, and any adjoining land used in connection therewith;

"public place" means any bridge, enclosure, foot-path, garden, open space, pavement, road, sanitary lane, stadium, hall, sidewalk, square, walkway or street of the nature of a thoroughfare vested in or controlled by the council, and to which the public or any section of the public has access;

"sanitary convenience" means urinary or water closet, or any other approved construction used for the receipt of disposal of human excreta, and includes the ceiling, entrance, floor, fittings, fixtures, roof, screen, seat, walls and windows thereof;

"trade premises" means any premises used, or intended to be used, for carrying on trade or business;

"water closet" means a flush toilet or a room containing a flush toilet.

*Prevention of nuisance*

4. (1) No person shall—

(a) perform any act; or

(b) permit any condition to exist which is nuisance on any premises.

(2) Where the Environmental Health Officer or an official appointed by Council is satisfied of the existence of nuisance, he may order any person, by whose act or omission, sufferance or default such nuisance is caused, forthwith to take such steps or to do such things as he may deem necessary to remove the nuisance.

*Structures and buildings*

5. (1) No person shall erect upon any land or stand any structure or building which is unsanitary, dangerous or unhealthy.

(2) No person shall allow any building constructed upon premises of which he is the occupier or owner to become dangerous, unsanitary, unhealthy, unsightly or likely to depreciate property in the vicinity or to cause a nuisance to the inhabitants at the neighbourhood or to remain in such a condition.

*Health and sanitation*

6. (1) It shall be the duty of the owner of the premises to provide—

(a) for every dwelling, a minimum of one water closet for every eight persons normally residing in such dwelling; and

(b) for any trade or business premises, a minimum of one water closet for every twelve persons or portion of twelve persons employed in such premises; and

(c) where both men and women are employed in any trade or business premises, separate toilet accommodation shall be provided for each sex.

(2) A contractor or other person employing workers on work of a temporary nature shall provide for such workers with sanitary conveniences which shall be of a number and type approved by any officer assigned by Council and situated so as to meet with the approval of the Council or any other official assigned and maintained in a clean and sanitary condition.

*Use of toilets*

7. (1) No person shall urinate or defecate within the Council area other than in a sanitary convenience.

(2) No person shall deposit in any sanitary convenience, drain or sewer; any stone, sand, brick, rag, disposable nappies or other article which may block or stop or otherwise interfere with the proper working of any toilet or sanitation or drainage system.

(3) The Environmental Health Officer or any other employee of council authorised for the purpose may, by notice to the occupier or owner of any premises, prohibit the use of a sanitary convenience which, by reason or faulty construction, neglect or any other cause, has become or is likely to become a danger to the public.

(4) No occupier or owner shall allow any sanitary convenience to be maintained or kept in an unsanitary manner.

*Overcrowding*

8. (1) It shall be the duty of the occupier or owner of any premises to ensure that—

(a) the premises are not overcrowded; and

(b) no person sleeps in a bathroom, kitchen or in any sanitary convenience.

(2) A dwelling premises shall be deemed to be overcrowded if the occupation of any room in those premises results in there being less than—

(a) eleven cubic metre of air space; and

(b) four square metres of floor space;

for every person sleeping in that room at any time.

Provided that when calculating the number of persons who are sleeping in a room a child under the age of ten shall be reckoned as one-half of a person and a child under the age of six months shall not be counted at all.

*Breeding of pests*

9. (1) No person shall do or cause to be committed any act as a result of which the breeding, harbouring or occurrence of pests or vermin is encouraged or facilitated.

(2) No person shall omit to do or cause to be committed any act which facilitates, favours or deposit on or in any land, encourages the breeding, harbouring or occurrence of pests or vermin in the premises that he or she occupies or own.

(3) No person shall remove, destroy or interfere with any trap or other contrivance or mechanism put in as a pest control measure by Council.

*Accumulation of organic matter*

10. (1) No person shall place, throw, pour or otherwise deposit on or in any land, stand or premises any excreta, sewage, slops, rubbish, refuse or any offensive or unwholesome matter.

(2) No owner or occupier of any land, stand or premises shall permit to remain or accumulate on or in any land any excreta, sewage, filth, septic tank effluent or other foul, offensive or unclean liquid, slops, yard-flushing, garden refuse, dead animal, decaying matter or other rubbish or offensive or unwholesome matter.

(3) Notwithstanding the provisions of subsections (1) and (2) and for so long as a public nuisance or danger or public health is not created:—

(a) slops, yard-flushing, garden refuse, decaying vegetables and other refuse may be deposited or accumulated in a garbage can or refuse pit; and

(b) Compost, manure, liquid manure or other organic matter intended for use on any land or stand may be made or kept on the land or stand.

*Accumulation of non-organic matter*

11. (1) No owner or occupier of any land, stand or premises shall permit to remain or accumulate on or in any land, stand or premises any bottle, tin, tank, drum, broken crockery or glass, timber, building-rubble, tyre, scrap metal, disused motor vehicle or any non- organic article.

(2) No person shall place, throw or deposit on or in any land, stand or premises any bottle, tin, tank, broken crockery or glass, timber, plastic, building-rubble, tyre, scrap metal, disused motor vehicle or any other non-organic article of whatsoever danger to public health.

(3) The Environmental Health Officer or any other employee of Council authorised for the purpose may issue any instructions to the owner or occupier of the land, stand or premises to prevent the accumulation or for the removal of accumulated non-organic matter.

(4) Should the owner or occupier of any land or stand cause the accumulation of non-organic matter, Council may take any steps as may be necessary to prevent the accumulation of non-organic matter on any land, stand or premises. The cost of any such steps or action shall be borne by the occupier or owner of the land, stand or premises on which the non-organic matter was accumulating.

*Cleaning stands*

12. Where in the opinion of the Environmental Health Officer or any other employee of council authorised for the purpose, the growth of grass or weeds or other vegetation on a stand or premises is likely to harbour rodents, vermin or mosquitoes, he or she shall serve a notice on the owner or occupier of such stand or premises requiring the cutting and removal from the stand or premises of such grass, weeds or other vegetation and failure to comply, Council may clean up at the cost of the owner or occupier.

*Trade waste*

13. Every owner or occupier of any trade premises shall provide suitable facilities to the satisfaction of council for the storage or preliminary treatment of trade waste.

*Refuse bin storage*

14. Every owner or occupier of any trade premises shall provide a platform of impervious material of such construction and dimension and in a position as directed by the Environmental Health Officer or any other employee of council authorised for the purpose, to be used solely for the refuse bin to stand upon, and no such owner or occupier shall fail to maintain such platform and refuse bin in a clean and sanitary condition.

*Burning of refuse*

15. No person shall burn any stable litter, trade waste, garden waste or other waste so as to cause a nuisance to the inhabitants or neighbouring occupiers.

*Rats and vermin*

16. Every person shall keep any premises or trade premises owned or occupied by him free from rats and other vermin, and every person shall rid such premises of rats and other vermin when required to do so on written notice by the Council.

*Rodent proofing*

17. All trade premises in which foodstuffs are prepared, stored or handled shall be rendered rodent proof to the satisfaction of the Environmental Health Officer or any other employee of council authorised for the purpose.

*Prevention of mosquito breeding*

18. (1) No person shall collect or allow to collect, or store water on any premises or trade premises except in tanks, wells, barrels or other receptacles which are so constructed and maintained as to completely exclude mosquitoes.

(2) All roof gutters shall be maintained in a clean state free of leaves and vegetation at all times.

(3) Any person who constructs or who is responsible for the maintenance of any furrows or canals for irrigation or other purposes, shall take adequate measures to prevent mosquito breeding.

(4) Grass at any premises should be kept short at all times to avoid breeding of mosquitoes.

*Expectorating*

19. No person shall expectorate on a public pavement or in a public place.

*Keeping of animals*

20. (1) No person shall keep any animals other than dogs, cats, rabbits, poultry or pigeons in urban dwellings or business centres without the permission of the Council.

(2) Council shall give a permit or licence to an occupier or owner to keep any other animal and in so doing impose conditions as to—

(a) the period for which the animal may be kept; and

(b) the place in which the animal may be kept in order to protect the health, safety and comfort of neighbours; and

(c) the number of animals to be kept at that particular area.

(3) Animals kept at any given premises shall be vaccinated at regular intervals and have a valid vaccination certificate.

(4) Any person who wishes to keep animals beyond the maximum threshold shall apply to Council for permission.

*Keeping of pigs*

21. (1) Pigs shall be kept in a pig sty constructed for that purpose.

(2) Any person intending to move pigs to other premises or to a slaughter house shall obtain a permit from Council at a fee specified in the First Schedule.

*Keeping of poultry and rabbits*

22. (1) No person shall keep more than hundred heads of poultry, pigeons and or rabbits, on any premises located at business centres and urban settlements other than land designated for agricultural purposes without the permission of Council in the prescribed manner.

(2) No person shall keep poultry elsewhere other than in poultry house or poultry run constructed so as to ensure that:—

(a) the movement of the poultry is controlled; and

(b) no nuisance or danger to public health arises by the keeping of the poultry.

(3) No person shall allow a poultry house or poultry run to become so filthy as to be a nuisance or a danger to the public.

(4) No person shall keep poultry on a stand measuring less than 200m$^2$.

*Keeping of bees*

23. No person shall keep bees without the written permission of Council and such person shall comply with the terms and conditions set out in the written approval.

*Tethering of animals*

24. No person shall tether any animal, including a domestic pet, on a leash exceeding two metres, in any street or public place.

*Diseased animals*

25. The owner of any animal, including a domestic pet, suffering from any infectious disease shall—

(a) immediately notify Council and Veterinary Services; and

(b) prevent the animal from being at large; and

(c) take all measures as may be necessary to prevent the spread of the disease.

*Seizure of animals*

26. Any police officer or person authorised thereto by Council may seize and send any animal found at large to the nearest pound.

*Offences and penalties*

27. Any person who contravenes any provisions of these by-laws shall be liable to a fine specified in the Second Schedule.

FIRST SCHEDULE

FEES

| Section | Description | Fee (US$) |
|---|---|---|
| 20, 21, 22, | Application fee to keep animals | 2,00 |
| | Permit to keep animals | 2,00 *per animal* |
| | Permit renewal fees | 2,00 |
| | Application to keep animals beyond the maximum threshold permitted | 2.00 *per animal* |
| 21 | Application fee for Pig movement permit | 2,00 |
| | Pig movement permit | 2,00 |
| 23 | Application for permit to keep bees (agro-residential) | 2,00 |
| | Bee keeping permit | 2,00 |
| | Permit renewal fees | 2,00 |

SECOND SCHEDULE

PENALTIES

| Section | Description | Fine (US$) |
|---|---|---|
| 4 | Nuisance prevention | 20,00 |
| 5 | Erection of structures or buildings which are unsanitary, dangerous or unhealthy | 100,00 |
| 6 | Failure to provide health and sanitation facilities on premises | 20,00 |
| 7 | Urinating or defecating in areas other than in a sanitary convenience | 20,00 |
| 7 | Depositing improper articles in the public sanitary convenience | 50,00 |
| 7 | Failure to keep or maintain any sanitary convenience in a proper sanitary manner | 20,00 |
| 8 | Overcrowding | 5,00 per person |
| 9 | Harbouring, breeding and occurrence of pests | 20,00 |
| 10 | Accumulation of organic matter on a premises | 20,00 |
| 11 | Accumulation of non-organic matter on a premises | 20,00 |

| Section | Description | Fine (US$) |
|---|---|---|
| 12 | Failure to clean premises | 20,00 |
| 13 | Failure to provide suitable facilities for storage or preliminary treatment of trade waste | 1000,00 |
| 14 | Failure to provide refuse bin storage | 20,00 |
| 15 | Burning refuse | 20,00 |
| 16 | Harbouring rats and vermin | 20,00 |
| 18 | Breeding mosquitos | 20,00 |
| 19 | Expectorating in public | 5,00 |
| 20, 21, 22, 23 | Keeping animals and bees without a permit | 20,00 |
| 20, 21, 22, 23 | Exceeding the number of animals permitted by Council | 20,00 |
| 24 | Failure to tether any animal on a leash exceeding 2 metres | 20,00 |
| 25 | Failure to notify Council and Veterinary services of an infectious disease | 50,00 |
| 25 | Failure to confine the diseased animal | 20,00 |
| 25 | Failure to prevent the spread of the disease | 20,00 |

**NB**: The above penalties can be paid at the Prevailing Interbank Rate and shall exclude VAT.